



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd AICP, Senior Planner
Subject: PLTA-25-8 – Amending UDC signs for Window Signs and Prohibited Signs – substitute
Date: June 11, 2025

Background:

An Ordinance amending UDC 6.5 Signs was introduced on May 27, 2025 and discussed at the meeting of the Governing Body on June 9, 2025. In that meeting, a motion was made to amend the Ordinance with respect to window signs. Staff has created a substitute to reflect that amendment with one minor grammatical change.

Substitute Language:

- “Window Signs” to read as follows:
“Window Signs shall be allowed in any ~~street-level~~ window. Window signs shall ~~not exceed more than 25% of the window area between 2’ and 8’ above grade.~~ be counted toward the allowed wall sign area. If 100% of the window area is to be covered, it must utilize a material that allows light to penetrate into the building.
(black text is originally proposed UDC language)

Attachments:

1. Ordinance
2. Redlined Ordinance

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING PORTIONS OF THE UNIFIED DEVELOPMENT CODE REGARDING SIGNAGE, TO INCREASE ALLOWANCES FOR WINDOW SIGNS AND FURTHER CLARIFYING PROHIBITED SIGNS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 19, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Table 6-16 of Section 6.5.4, Sign Allowances, and Section 6.5.7, Prohibited Signs, of Chapter 6.5, Signs, of Article 6, Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, are hereby amended as set out in this section (the amendment in context of the entirety of Section 6.5.4 Sign Allowances is attached as Exhibit A):

TABLE 6-16: NON-RESIDENTIAL DISTRICT SIGN ALLOWANCES	
<i>Temporary Signs</i>	▪ Up to 2 per lot. ▪ No single sign shall be more than 32 square feet. ▪ Signs may be placed up to 45 days prior to and 10 days following the event or distinct time period addressed by the sign.
<i>Building Signs</i>	▪ Wall Signs up to 20% of the wall area, but no more than 400 square feet total. The NB, MUR , and MUB districts shall count only 10% of the street facing walls up to the height of 20' in calculating the Wall Sign allowance. Only one Wall Sign per each 50' of building frontage is permitted in the CBD. ▪ 1 Projecting Sign per street frontage, projecting no more than 5' from the surface, and no greater than 32' in area. Projecting Signs shall have a clearance of at least 10', and shall project no higher than the highest point of the building.
<i>Ground Signs</i>	▪ 1 Freestanding or Low-profile Sign per street frontage or building complex. The height and area of Freestanding Ground Signs shall be based on Table 6-17. The area shall be limited to 8 square feet for each 25' of lot frontage up to a maximum of 80 square feet. ▪ Incidental signs may be provided at 12 square feet per acre, and no more than 6 square feet per sign.

<i>Pedestrian Signs</i>	▪ Awning Signs / Canopy Signs provided the awning or canopy provides at least 8' clearance and the sign is limited to 3 square feet per linear foot of awning or canopy. ▪ Hanging Signs shall be allowed one per every 50 linear feet of building frontage, or one for every building entrance, whichever is greater. Hanging Signs shall not exceed 12 square feet in area. ▪ Window Signs shall be allowed in any window. Window signs shall be counted toward the allowed wall sign area. If 100% of the window area is to be covered, it must utilize a material that allows light to penetrate into the building.
<i>Neighborhood / District Identification Signs</i>	▪ Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. In industrial business parks in the MUE, BP, and HI zone districts, the allowance for neighborhood identification signs may be up to 200 square feet per sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. ▪ No sign or structure supporting the sign shall exceed a height of 6'. In industrial business parks in the MUE, BP, and HI zone districts, sign structures may be up to 20' high, and neighborhood identification signs may be placed on prominent structures having a non-sign primary function (such as a water tower, cell tower, electrical facility, or similar).

6.5.7 Prohibited Signs

The following specific application of sign types are prohibited in all zoning districts, regardless of whether they meet the sign allowances of this Section:

- a. Signs that have been abandoned for sixty (60) days or longer;
- b. Signs imitating or resembling government signs for traffic direction or any other public safety symbol, unless approved by the City for the purpose of traffic direction or public safety in accordance with Chapter 10.20 of the Municipal Code of the City of Cheyenne;
- c. Signs placed on vehicles or trailers for the primary purpose of displaying the sign(s), when such vehicle or trailer is parked and visible from the public right-of-way and is not used in the normal day-to-day operations of the owner or a business;
- d. Signs placed in or encroaching upon a public right-of-way, except:
 1. Awnings, projecting canopies, and marquees which comply with the provisions of these regulations and are at least 8' above the sidewalk;
 2. Bus stop benches and shelters, displaying signs on the backs of the benches, approved by the City through a request for proposal (RFP) process and a contract with a provider of the benches;
 3. Portable signs which comply with these regulations; and

4. Signs located in the right-of-way directly between the property line of the owner of the sign and the curb or edge of the roadway, with the review and approval of the City Engineer through applicable agreements or permits regarding use of the right-of-way. Any approved sign comes with the understanding that roadway or utility improvements may affect the sign and if the sign is required to be maintained, moved, removed or replaced it may be required to be done at the expense of the owner of the sign. If approved, such signs must meet code requirements for a sign placed 0' to 5' from the right-of-way.
- e. Building signs that extend vertically above the highest portion of the roof line or parapet, whichever is higher.
- f. Portable signs, except that one sign per building entrance may be allowed as a permitted Pedestrian Sign in any Mixed-Use, Commercial or Industrial zone district, subject to the following:
 1. The sign consists of non-illuminated chalkboards or similar devices mounted on tripods, easels or pedestals;
 2. The sign shall not exceed 12 square feet and shall not exceed 5' height;
 3. The sign shall be located no more than 25' from the principal entrance to the building and removed from the premises during non-business hours; and
 4. If located in the right-of-way it shall be located in a manner that allows at least 6' clear area for pedestrian flow and meet all sight line triangle requirements.
- g. Signs on corner lots within the sight line triangle, except:
 1. Signs which do not exceed 2.5' above street grade, and
 2. Freestanding signs which have at least 12' of clearance above street grade and which do not have a support pole larger than 12" in diameter.
- h. Animated signs, except in the CB, BP, LI, or HI districts.
- i. Off-premises signs located on private property, unless approved as a billboard or as part of a temporary use permit (for off-premises temporary signage).
- j. Signs that are obscene or do not concern lawful activity.

Section 4. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 5. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

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